

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VICKY LOW,

Petitioner

VS.

KENDRICK LOW,

Respondent

) Case Number: FDI-18-789941

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

RELEASE OF FUNDS BY HERSH FAMILY LAW (50/50) SINCE JULY 2021

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Vicky Low (Wife) and Respondent Kendrick Low (Husband) married on 7/25/1998 and separated on 4/25/2018, for a marriage of 19 years and 9 months. The parties have one adult daughter. Husband is represented by attorneys Laura Van Zandt and Ann Riley. Wife is self-represented.
- 2) On 10/27/2021, Judgment was entered which incorporated the parties' Marital Settlement Agreement (MSA). The MSA provides in relevant part
 - a. Section 2.03(f) – Jurisdiction is reserved over the characterization and division of Wife's IRA account.
 - b. Section 2.03(g) – The Court reserves jurisdiction to divide tangible personal property in the event the parties are unable to agree.
 - c. Section 2.07 - Jurisdiction is reserved over the following issues: (a) Wife's Family Code 2640 right to reimbursement for a \$25,000 contribution to acquisition of Moscow Street, according to proof; (b) the community's right to reimbursement for community investment in Husband's

1 1972 Chevelle, according to proof; (c) responsibility for tax obligations from before the date
2 of separation, according to proof; (d) characterization and apportionment of credit card
3 payments paid pursuant to Article 2.05(e), according to proof; and (e) computation of interest
4 paid to the Low Family Trust, according to proof.

5 d. Section 2.05(d) - Upon sale of Moscow Street, the following payments shall be made through
6 escrow: (1) commission and costs of sale; (2) mortgage held with San Francisco Fire Credit
7 Union; (3) HELOC held with San Francisco Fire Credit Union; and (4) \$90,000 principal
8 obligation owed to the Low Family Trust.

9 e. Section 2.05(e) - Upon sale of the Moscow Street, the other following obligations will be
10 paid, through escrow if possible, and if payment through escrow is not possible, from the
11 gross proceeds of sale before division by the parties: (1) interest due to the Low Family Trust
12 through July 31, 2021, less the \$11,400 in interest previously paid through year-end 2014; (2)
13 any outstanding tax obligations incurred prior to the date of separation; (3) loan against
14 Husband's deferred compensation account; and (4) credit cards for which both parties might
15 be held liable. The court reserves jurisdiction to allocate the debts paid in Article 2.05(e)
16 between the parties' community and separate obligations, as set forth in Article 2.07.

17 f. Section 2.05(f) - Upon payment of the items set forth in Article 2.05(d) and (e), the remaining
18 proceeds of sale will be divided equally by the parties.

19 g. Section 2.05(g) - Each party will report, for federal and state income tax purposes, half of the
20 total gain realized on the sale of the residence. If the parties are unable to exclude their gain
21 entirely under the Internal Revenue Code Section 121, then each party will determine his or
22 her net tax increase as a result, i.e., the difference between his or her total tax obligation in
23 the tax year for which the tax on the gain is paid and what it would have been had the gain
24 been deferred. The party having the smaller net tax increase will pay to the other, half of the
25 difference between the two net tax increases.

26 h. Section 2.05(h) - The court in the parties' dissolution action will reserve jurisdiction to make
27 such orders relating to sale of the family residence that are necessary to carry out this
28 agreement if the parties fail to cooperate or agree, including orders with respect to the sale
29

process itself, provisions regarding the residence pending sale, disposition of proceeds, and tax consequences.

- 3) On for hearing is Wife's Request for Order filed 4/1/2026. Wife states that funds in the amount of \$200,000 have been held in an interest-bearing account by Hersh Family Law (Wife's former attorney) since July 2021. Wife states the balance is now approximately \$170,000 due to IRS levies and tax-related liabilities associated with the parties' 2016 taxes. Wife states the parties have made multiple efforts to determine how these funds should be distributed but, to date, no resolution has been reached. Wife requests distribution of the funds in equal amounts to each party.
- 4) On 5/27/2026, Husband filed a Responsive Declaration. Husband states the MSA reserved on several issues which require resolution before the trust account proceeds are distributed. As set forth below, Husband claims Wife owes him a total of \$33,072 from Wife's share of the trust account proceeds. These include:
- a. Wife's IRA Account (section 2.03(f) of the MSA) – Husband states he is entitled to one-half of the \$23,964 community balance of the IRA, and should receive \$11,982 from Wife's share of the trust account
 - b. Separate Property Contribution by Wife to Community Residence (section 2.07(a) of the MSA) – Husband states it has been 5 years since the MSA was executed and Wife has provided no documentation to prove a \$25,000 separate property contribution by Wife to the community residence (which was sold). Husband asks the Court to terminate jurisdiction over this issue.
 - c. Community Property Contribution to Husband's Separate Property 1972 Chevelle Automobile (section 2.07(b) of the MSA) – Husband states it has been 5 years since the MSA was executed and Wife has provided no documentation to prove Husband spent community funds on his separate property 1972 Chevelle automobile. Husband asks the Court to terminate jurisdiction over this issue.
 - d. Payments and Taxes Made After Date of Separation for Pre-Marital Income Tax Obligations (Section 2.07(c) of the MSA) – Husband states he paid \$22,180 from his separate

property to cover the parties' 2016 tax obligation, and should receive \$11,090 from Wife's share of the trust account

e. Credit Card Payments Made from Escrow (section 2.07(d) of the MSA) – Husband states the MSA reserves jurisdiction over the “characterization and apportionment of the credit card payments paid from escrow on sale of the family home, according to proof.” Husband states no credit card payments were made from escrow. Husband asks the Court to order each party to pay any and all credit card obligations in that party's respective name and indemnify the other party against any enforcement by creditors against the other party.

f. Interest Owing to Low Family Trust (section 2.07(e) of the MSA) – Husband states the MSA reserves jurisdiction to compute the interest owing to the Low Family Trust. Husband states the Low Family Trust was paid \$24,300 in interest out of escrow of the sale of the family home. Husband asks the Court to terminate jurisdiction over this issue.

g. Personal Property (sections 2.02(h) and 2.03(g) of the MSA) – Husband states the MSA reserves jurisdiction to divide personal property between the parties. Husband estimates that Wife removed \$25,000 worth of household furniture, furnishings, fixtures, etc. from the family residence prior to sale and requests Wife to reimburse him \$10,000 from Wife's share of the trust account.

h. Potential Tax and Penalty Liability for Husband's Amended Tax Return for 2021 (section 2.05(g) of the MSA) Husband states Wife has failed to provide documentation to show the total cost of improvements made to the family residence. Husband intends to amend his “2021 income tax returns for sale of the residence,” and would like the Court to retain jurisdiction to order Wife to indemnify Husband in the event his amended 2021 income tax returns are audited and unpaid taxes and penalties are due based on Wife's inability to prove the improvements to the residence.

5) On 5/28/2026, Wife filed a Reply Declaration. Wife did not respond to the specific issues outlined in Husband's Responsive Declaration. Instead, she reiterates her request that the Court order the immediate equal division and release of the remaining escrow funds currently being held “rather than continue revisiting and re-litigating historical disputes dating back many years.” In the alternative, Wife requests the Court to “equitably consider the fact that the original escrow

1 balance was approximately \$200,000 before substantial depletion caused by IRS levies and
2 unresolved community property related debt.”

3 6) At the prior 6/9/2026 hearing, the Honorable Judge Chan made the following orders (per the
4 Findings and Order After Hearing filed 6/11/2026):

5 a. Judge Chan set a future hearing date of 7/14/2026 and ordered the parties to meet and confer
6 regarding Husband’s proof of the character and value of Wife’s IRA account and payments of
7 the post-separation payroll deductions. If there is no dispute, the parties were ordered to
8 notify the Court prior to the next hearing of their agreement. If there is a dispute, Husband
9 was ordered to submit his supporting evidence to prove-up his claims.

10 b. Judge Chan noted that, pursuant to the MSA Article 2.07, the proceeds from the sale of the
11 Moscow Street property are being held to provide a “mechanism to ensure that any debts for
12 which both parties might be held liable are paid.” Judge Chan noted it has now been almost
13 five years since Judgment was entered and stated the Court’s intent to grant Wife’s request to
14 release the funds held by Hersh Family Law on the condition that the payments required by
15 Article 2.05(d) of the MSA have been paid (commission and costs of sale, mortgage held
16 with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union,
17 and \$90,000 principal obligation owed to Low Family Trust), and to thereafter divide the
18 funds equally.

19 7) On 6/22/2026, Wife filed a declaration. Wife requests that the Court decline to apply the
20 requested offsets, reimbursements, or reductions against her share of the remaining trust funds
21 unless and until Husband provides competent evidence establishing: (a) the purpose and use of
22 the \$30,000 Prudential deferred compensation loan proceeds; (b) the specific tax years,
23 assessments, and liabilities that resulted in the levy against the trust funds; (c) a complete
24 accounting showing how approximately \$200,000 originally held in trust was reduced to the
25 current balance; and (d) the basis for any claim that such obligations should properly be charged
26 against Wife’s share of the remaining community property funds. Wife further requests that the
27 Court equitably divide the remaining community property funds only after all claims, offsets,
28 reimbursements, and obligations have been properly established and supported by admissible
29 evidence.

1 a. IRA Withdrawals: Wife states Husband is not entitled to a reimbursement for amounts she
2 withdrew from community Fidelity IRA or Merrill Edge IRA accounts because those funds
3 were “used for community and family obligations, including mortgage payments, property
4 taxes, homeowner expenses, and our daughter’s private school tuition” after Husband moved
5 out of the family residence or about April 2018.

6 b. Prudential Deferred Compensation Loan: Wife acknowledges that the Prudential loan was
7 obtained during marriage and prior to separation. Wife states that based upon her knowledge
8 and recollection of the parties’ financial circumstances at the time, there was no need for an
9 additional \$30,000 loan for community or family purposes and she states Husband’s
10 documents do not establish how the loan proceeds were used or whether they were used for a
11 community purpose. Therefore, Wife does not agree to Husband’s request for reimbursement
12 for this loan solely because loan repayments were deducted from his paycheck after
13 separation.

14 c. Tax Liabilities: Wife states that the parties did not file joint tax reruns after the parties
15 separated in 2018. Wife states she does not know what actions Husband took with respect to
16 his tax obligations after the parties’ separation. Wife states that Husband has not provided the
17 specific tax years giving rise to the levy, the nature of the assessments, or whether the
18 liabilities arose before or after separation. Wife state that she is therefore unable to determine
19 whether the claimed offset relates to Husband’s separate obligations or whether any portion
20 constitutes a community obligation.

21 8) On 6/29/2026, Husband filed a declaration stating that he is entitled to \$12,900 as an offset
22 against the amount Wife withdrew from community IRA accounts post-separation. Husband
23 states Wife owes him \$11,090 for post-separation payments for the deferred compensation loan.
24 Husband acknowledges that the \$9,272.04 seized by the Franchise Tax Board from the client
25 funds account should be attributed to him and act as an offset against what Wife owes him.
26 Husband states, “This results in me receiving \$14,717.96 from Vicky’s share of the client funds
27 account. Thus, based on the May 31, 2026 balance of \$172,917.95 Vicky should receive
28 \$71,739.51 and I should receive \$101,175.43.”
29

1 9) On 6/29/2026, Husband's attorney Ann Riley filed a declaration wherein she states: "Ms. Low
2 claims that she should not be charged with any portion of the community property deferred
3 compensation plan loan because she claims she does not know how the proceeds were used. She
4 further claims that she should not be charged with the post-separation liquidation of the two IRA
5 accounts because she spent the money on expenses which she would attribute to the community.
6 She has provided no evidence to substantiate either of these claims. Further, she has not
7 responded to my meet and confer efforts where I detailed the result of my calculations."

8 **B. Findings and Order**

- 9 1) The Court finds Wife did not meet her burden to prove that post-separation withdrawals from
10 community property IRA accounts were used to pay for community obligations. Husband's
11 request for a \$12,900 offset, for his one-half share of these withdrawals, is granted.
- 12 2) Husband's request for Wife to pay him one-half of the post-separation payroll deductions for the
13 Prudential loan in the amount of \$11,090 is granted. The Prudential loan was taken out before the
14 parties' date of separation and is presumptively a community debt. The Court does not find that
15 Wife rebutted the community debt presumption.
- 16 3) Husband's request to terminate jurisdiction over Wife's potential \$25,000 separate property
17 reimbursement is DENIED.
- 18 4) Husband's request to terminate jurisdiction over a potential reimbursement of community funds
19 used to purchase Husband's separate property 1972 Chevelle is DENIED.
- 20 5) Husband's request that each party pay any and all credit card obligations in that party's respective
21 name, and indemnify the other party against any enforcement by creditors against the other party
22 of the named party's credit card obligations is GRANTED.
- 23 6) Husband's request to terminate jurisdiction over interest paid to the Low Family Trust is
24 GRANTED. The Low Family Trust was paid \$24,300 in interest out of escrow of the sale of the
25 family home.
- 26 7) Husband's request for reimbursement in the amount of \$10,000 as final settlement of the division
27 of tangible personal property is DENIED WITHOUT PREJUDICE. There is insufficient proof.
- 28 8) Pursuant to the MSA Article 2.07, the proceeds from the sale of the Moscow Street property are
29 being held to provide a "mechanism to ensure that any debts for which both parties might be held

liable are paid.” It has now been almost five years since Judgment was entered. Wife’s request to release the funds held by Hersh Family Law is GRANTED, as set forth below, on the condition that the payments required by Article 2.05(d) of the MSA have been paid (commission and costs of sale, mortgage held with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union, and \$90,000 principal obligation owed to Low Family Trust).

9) Husband’s request that the following amounts be awarded as offsets to him against the balance held in the Hersh Family Law trust account is granted:

a. \$12,900 as an offset against the amount Wife withdrew from community IRA accounts post-separation

b. \$11,090 for Husband’s post-separation payments for the Prudential loan

10) Wife shall receive an additional \$9,272.04, which Husband admits should be awarded to Wife as an offset against the amount seized by the Franchise Tax Board from the client funds account,

11) Therefore, assuming the following costs have been paid (commission and costs of sale, mortgage held with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union, and \$90,000 principal obligation owed to Low Family Trust) and assuming the trust account balance is \$172,917.95, Husband shall receive $(\$172,917.95 / 2) + \$12,900 + \$11,090 - \$9,272.04 = \$101,176.94$ from the Hersh Family Law trust account and Wife shall receive $(\$172,917.95 / 2) - \$12,900 - \$11,090 + \$9,272.04 = \$71,742.01$. These amounts shall be distributed to each party as soon as practicable.

12) Husband’s attorney shall prepare the Findings and Order After Hearing.

13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).